ironically, proponents of moral wars (especially those in western Europe) insist on judging those fighting terrorism according to archaic laws and norms belonging to another era of warfare.

The characteristics of modern international terrorism present and create new problems, for which the legal and normative framework of past wars is not at all applicable or capable of dealing with.

- What is the law for terrorists acting under divine orders, without any provocation?
- What is the law for terrorists who attack civilians?
- What is the law regarding countries that support terrorism in various ways (with money, weapons, training, exit bases, shelter, and so on)?
- What is the law for suicide bombers?
- What is the law for suicide terrorists using weapons of mass destruction?
- Is the legal test in the era of international terrorism the test of action or the test of intent?

I would like to expand a little on two areas in order to illustrate the enormous difference in the basic premises of the era of the old wars and the era of terrorism: the strategy of prevention as opposed to a response strategy, and the issue of targeted killings. After Pearl Harbor and the Iraqi invasion of Kuwait, US presidents asked for congressional approval in order to take action. After the terrorist attacks of September 11, 2001, President George W. Bush asked Congress to approve a preemptive strike. Why?

After half a century of response-based strategy, the Bush administration believed that a purely defensive policy was obsolete and irrelevant. In an environment of international terrorism, state sponsors of terrorism, and the combination of terrorism and weapons of mass destruction, the perception of responsive warfare is no longer fitting. If we believe that the enemy is preparing for an aggression at some point in the future, we must stop it by taking preventive actions. In the Cold War era, a preemptive strategy was impossible. The strategic environment today is one of terrorism without the borders of nation-states. Terrorists plan deadly attacks without any provocation from the other side. Terrorism has no political territory,